

Decision 25-05-027 May 15, 2025

BEFORE THE PUBLIC UTILITIES COMMISSION OF THE STATE OF CALIFORNIA

Application of Southern California Edison
Company (U338E) for Approval for Its
Building Electrification Programs.

Application 21-12-009

**DECISION GRANTING COMPENSATION TO
THE UTILITY REFORM NETWORK
FOR SUBSTANTIAL CONTRIBUTION TO DECISION 24-01-004**

Intervenor: The Utility Reform Network (TURN)	For contribution to Decision (D.) 24-01-004
Claimed: \$229,096.25	Awarded: \$169,131.56
Assigned Commissioner: Karen Douglas	Assigned ALJ: Zhen Zhang

PART I: PROCEDURAL ISSUES

A. Brief description of Decision:	D.24-01-004 denied SCE's proposed building electrification investment program because it failed to incorporate lessons learned from other existing programs, failed to estimate the impacts of federal and state funding, and was based on unreliable estimates of GHG reduction benefits. The Commission authorized SCE to refile its program with certain modifications.
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B. Intervenor must satisfy intervenor compensation requirements set forth in Pub. Util. Code §§ 1801-1812¹:

	Intervenor	CPUC Verification
Timely filing of notice of intent to claim compensation (NOI) (§ 1804(a)):		
1. Date of Prehearing Conference:	March 24, 2022	Verified
2. Other specified date for NOI:		
3. Date NOI filed:	April 22, 2022	Verified
4. Was the NOI timely filed?		Yes
Showing of eligible customer status (§ 1802(b)) or eligible local government entity status (§§ 1802(d), 1802.4):		
5. Based on ALJ ruling issued in proceeding number:	See Comment 1.	A.21-12-007
6. Date of ALJ ruling:	See Comment 1.	05/31/2022
7. Based on another CPUC determination (specify):		
8. Has the Intervenor demonstrated customer status or eligible government entity status?		Yes
Showing of “significant financial hardship” (§ 1802(h) or § 1803.1(b)):		
9. Based on ALJ ruling issued in proceeding number:	See Comment 1.	A.21-12-007
10. Date of ALJ ruling:	See Comment 1.	05/31/2022
11. Based on another CPUC determination (specify):		
12. Has the Intervenor demonstrated significant financial hardship?		Yes
Timely request for compensation (§ 1804(c)):		
13. Identify Final Decision:	D.24-01-004	Verified
14. Date of issuance of Final Order or Decision:	January 22, 2024	Verified
15. File date of compensation request:	March 19, 2024	Verified
16. Was the request for compensation timely?		Yes

¹ All statutory references are to California Public Utilities Code unless indicated otherwise.

C. Additional Comments on Part I:

#	Intervenor's Comment(s)	CPUC Discussion
1	TURN had requested a Ruling in this proceeding concerning TURN's eligibility and significant financial hardship, but no such Ruling was made in this case. As TURN explained in its NOI, filed on April 22, 2022, TURN's last finding of significant financial hardship was issued by ALJ Ruling in R.20-08-021 on December 11, 2020. The rebuttable presumption created by that finding expired on December 11, 2021. In anticipation of the expiration of that finding, TURN presented its annual showing of significant financial hardship in the NOI that TURN filed in A.21-06-016 on August 19, 2021. TURN requested but has not received an ALJ Ruling in that proceeding on TURN's showing of significant financial hardship. This proceeding commenced on December 20, 2021, shortly after the expiration of TURN's most recent finding of significant hardship on December 11, 2021. TURN accordingly requests that the Commission in its decision concerning this compensation request, rule on TURN significant financial hardship showing as presented in A.21-06-016 on August 19, 2021. TURN's showing in A.21-06-016 is available here: https://docs.cpuc.ca.gov/PublishedDocs/Efile/G000/M401/K335/401335069.PDF (see Attachment 2).	Noted. An ALJ Ruling in A.21-12-007 issued on May 31, 2022 demonstrated TURN's showing of significant financial hardship and eligible customer status.

PART II: SUBSTANTIAL CONTRIBUTION**A. Did the Intervenor substantially contribute to the final decision (see § 1802(j), § 1803(a), 1803.1(a) and D.98-04-059):**

Intervenor's Claimed Contribution(s)	Specific References to Intervenor's Claimed Contribution(s) ²	CPUC Discussion
Policy TURN recommended that the Commission deny the entire program.	Ex. TURN-01 (Revised October 12, 2022) at 2. TURN OB (December 15, 2022) at 1-2.	Verified
² For ease of reference, TURN provides citations primarily to our direct testimony (Exhibit TURN-01, Revised October 12, 2022) and our Opening Brief (December 15, 2022), unless citations to other pleadings (reply brief, reply testimony, motions) are necessary. When appropriate, TURN provides a citation to sections of Exhibit TURN-01 and D.24-01-004, rather than to specific page numbers.		

authorized SCE to refile an amended application.		
Coordination with Existing Programs TURN argued that SCE's program was duplicative of the existing low-income Energy Savings Assistance (ESA) program, and recommended that if the Commission authorized any part of SCE's program, it should be modeled on the ESA program. The Commission concluded that SCE could better incorporate lessons learned and coordinate with the ESA program.	TURN OB, Section 4.2. D.24-01-004, Section 5.1.1.	Verified Verified
GHG Emissions Reductions TURN explained that SCE's GHG emissions abatement costs were higher for residential customers, and that using only Climate Zone 10 for analyses is inappropriate. The Commission concluded that SCE's estimates of GHG reduction were not sufficiently reliable due to the use of a single Climate Zone in the modeling and certain other technical errors.	Ex. TURN-01, Section 2.2. TURN OB, Section 2.4. D.24-01-004, Section 5.3.	Verified Verified
Marginal GHG Abatement Costs TURN explained that SCE's GHG emissions abatement costs were higher for residential	Ex. TURN-01, Sec. 2.3.	Verified

customers, and TURN agreed that using a single Climate Zone for analyses was inappropriate. The Commission found that SCE's marginal abatement costs were not reliable due to the use of a single climate zone for the analysis.	TURN OB, Sec. 2.1.1 and 2.4. D.24-01-004, Section 5.4.	Verified
Cost Recovery TURN argued that regulatory asset treatment of utility investments on customer-side infrastructure is contrary to ratemaking principles and unnecessarily raises ratepayer costs. The Commission declined to address the issues since it denied SCE's Proposal with or without regulatory asset treatment. See Additional Comments on Part II, #2 below.	Ex. TURN-01, Section 5.1. TURN OB, Sections 5.1, 5.2 and 5.3. D.24-01-004 at 45.	Verified Verified
Rate and Bill Impacts TURN argued that SCE's claim of reduced rates after the first four years of program rollout did not properly consider the net present value impacts of the program. TURN showed the program resulted in net rate increases over the life of the program. TURN further demonstrated that rate impacts would be significantly worse if program	Ex. TURN-01, Sections 2.1.1 and 2.1.2. TURN OB, Sections 3.1, 3.2. Ex. TURN-01, Section 2.1.3.	Verified Verified

benefits are properly adjusted for the impacts of free ridership. TURN also showed that SCE's forecast participant bill savings were based on assumptions concerning increased consumption based on erroneously using a single climate zone. The Commission agreed with TURN's analyses, especially concerning the erroneous use of one climate zone and the assumption of no free ridership.	TURN OB, Section 3.3. Ex. TURN-01, Section 2.2. TURN OB, Section 2.4. D.24-01-004 at 47-48, 50-51.	Verified Verified
Equity Issues TURN showed that program benefits would disproportionately flow to a small number of wealthier participants. TURN demonstrated that any participant bill savings will flow to a minority of participants with central HVAC systems. TURN argued that affordability impacts would significantly harm low income customers, and the program does not align with the Commission's social justice goals. TURN also showed that the program's equity incentives would not guarantee participation by low income customers. The Commission found that the level of participation by CARE	Ex. TURN-01, Sections 2.2, 2.4.2. Ex. TURN-01, Section 2.2. Ex. TURN-01, Sections 2.4.1, 6. TURN OB, Section 4.1. D.24-01-004 at 48-49.	Verified Verified Verified Verified Verified

customers was highly uncertain, and impacted rate and bill impact estimates.		
Demand Response TURN recommended that if the Commission adopted the program, it should require participants to enroll in supply side demand response programs. Edison modified its proposal in rebuttal testimony to adopt this recommendation.	Ex. TURN-01, Sec. 3. TURN OB, p. 3 and fn. 2.	Verified Verified

B. Duplication of Effort (§ 1801.3(f) and § 1802.5):

	Intervenor's Assertion	CPUC Discussion
a. Was the Public Advocate's Office of the Public Utilities Commission (Cal Advocates) a party to the proceeding?	Yes	Verified
b. Were there other parties to the proceeding with positions similar to yours?	Yes	Verified
c. If so, provide name of other parties: CLECA also recommended rejecting this application. The various environmental group intervenors (NRDC; Sierra Club; EDF) recommended changes but supported the program. The Protect Our Communities Foundation recommended significant modifications.		Noted; Wild Tree Foundation also shared similar positions
d. Intervenor's claim of non-duplication: TURN attempted to coordinate and minimize duplication by holding several coordination meetings (coded "coord") between attorneys and relevant experts, primarily with the Cal Advocates, but also with CLECA. Avoiding duplication entirely with Cal Advocates is very difficult, since the staff seeks to address nearly all issue areas covered by SCE's application. Therefore, the coordination effort with Cal Advocates aims to minimize duplication, and to ensure that where such		Noted

	Intervenor's Assertion	CPUC Discussion
	duplication occurs, TURN's witnesses are presenting distinct and unique arguments in support of common or overlapping recommendations. Due to the coordination with Cal Advocates in this case, TURN minimized our work on issues concerning duplicative funding and duplicative programs, and focused our analyses and pleadings on rate and bill impacts, cost effectiveness, and equity issues. The Commission should thus find that TURN's participation was reasonably coordinated with the participation of Cal Advocates and other intervenors under the circumstances so as to avoid undue duplication, and to ensure that, whenever duplication occurred, it served to supplement, complement, or contribute to the showing of the other intervenors. Consistent with such a finding, the Commission should determine that all of TURN's work is compensable consistent with the conditions set forth in Section 1802.5.	

C. Additional Comments on Part II:

#	Intervenor's Comment	CPUC Discussion
1	Partial Success The statutory definition of "substantial contribution" in Section 1802 of the P.U. Code states that a contribution results because the Commission "has adopted in whole or in part one or more factual contentions, legal contentions, or specific policy or procedural recommendations presented by the customer." The Commission has interpreted the "in whole or in part" provision, in conjunction with Section 1801.3, so as to effectuate the legislature's intent to encourage effective and efficient intervenor participation. The Commission has established as a general proposition that when a party makes a substantial contribution in a multi-issue proceeding, it is entitled to compensation for time and expenses even if it does not prevail on some of the issues. See, for example, D.98-04-028 (awarding TURN full compensation in CTC proceeding, even though TURN did not prevail on all issues); D.98-08-016, pp. 6, 12 (awarding TURN full compensation in SoCalGas PBR proceeding); D.00-02-008, pp. 4-7, 10 (awarding TURN full compensation even though we unsuccessfully opposed settlement). The standard for an award of intervenor compensation is whether TURN made a substantial contribution to the Commission's decision, not whether TURN prevailed on all issues.	Noted

#	Intervenor's Comment	CPUC Discussion
	However, the Commission has also recognized that an intervenor may make a substantial contribution by improving the Commission's decision-making process, even where the adopted outcome is contrary to the intervenor's recommendations. (For example, D.21-06-021 at 2-3; D.19-10-019 at 5-6; D.09-04-027 at 4).	
2	Issues Not Addressed in Final Decision TURN devoted a significant amount of time and effort to: 1) legal research and analysis concerning regulatory asset rate treatment for behind-the-meter home electrical upgrades; and 2) factual analyses concerning the cost effectiveness of the program. The issue of regulatory asset treatment became moot since the Commission dismissed the application. TURN attorney and witness Hawiger conducted research and sponsored testimony on this topic, coded as "RegAsset." Given the legal and financial importance of this issue, it was reasonable for TURN to devote time to this issue in case the Commission authorized some or all of the proposed program spending with modifications. Similarly, the issue of program cost-effectiveness was a key disputed issue. SCE created a unique model to evaluate the cost effectiveness of a load building electrification program; including modeling the marginal GHG abatement costs of the program, the portfolio benefits, the bill savings, and a comparison of the program with transportation electrification programs. (WP SCE-02, Prescott) TURN witness Awan devoted considerable time to evaluating the assumptions and conclusions of these models, work coded as "C/E." The Scoping Memo of April 27, 2022, restricted the evaluation of costs and benefits to the issue of whether the proposed program was cost-effective "compared to other building electrification programs" (Scoping Memo, 4/27/22, p. 6), and ALJ Zhang denied the Cal Advocates' motion to consolidate this proceeding with the energy efficiency application, noting that the BE application proposes "additional goals and cost-effectiveness considerations" (ALJ Ruling, 5/23/22, p. 3). TURN's testimony focused on the bill impact and abatement cost portions of the cost-effectiveness work.	Noted NRDC also conducted bill impact analysis.

#	Intervenor's Comment	CPUC Discussion
	Nevertheless, TURN believes that it is reasonable for the Commission to compensate TURN for the significant work that was necessary to understand the underlying business case cost-effectiveness model for the program, even if some of that work did not result in specific recommendations. The Commission has consistently compensated intervenor work on issues that were not addressed in a final decision due to intervening events beyond the control of the intervenor. (See, for example, D.02-03-034, D.02-03-035, D.02-08-061, D.03-05-029, D.03-06-065, D.04-03-031, D.05-12-038, D.06-06-008, D.06-10-007, and D.13-02-032).	

PART III: REASONABLENESS OF REQUESTED COMPENSATION

A. General Claim of Reasonableness (§ 1801 and § 1806):

	CPUC Discussion
a. Intervenor's claim of cost reasonableness: TURN requests compensation of approximately \$230,000 as the reasonable cost of our participation in this proceeding. The Commission should conclude that the amount requested is reasonable under the circumstances here. TURN's participation in the proceeding contributed to the Commission's overall decision rejecting this application, and thus forestalling almost \$700 million in utility spending for a program that might not provide significant environmental benefits or cost savings.	Noted
b. Reasonableness of hours claimed: <u>Overall</u> TURN seeks compensation for approximately 515 professional hours devoted to this proceeding, including 374 attorney hours and 141 expert witness hours. TURN's attorneys and experts submitted direct testimony, and opening and reply briefs. Two of TURN's attorneys also sponsored expert technical and policy testimony.	Noted; however, See Part III.D CPUC Comments, Disallowances and Adjustments [7].

	CPUC Discussion
The Commission should find reasonable the hours that TURN's attorneys and experts recorded for their work in this matter. <u>Attorney Hours</u> Four TURN attorneys participated actively in this proceeding; however, the vast majority of the work was performed by attorneys Camille Stough and Marcel Hawiger. Mr. Hawiger was TURN's lead attorney in this case. Mr. Hawiger has been a staff attorney with TURN since 1998. Mr. Hawiger has been the lead attorney on numerous proceedings, including cases addressing demand-side management programs and policies, utility rate cases, natural gas infrastructure investments and natural gas commodity procurement. In this case, Mr. Marcel Hawiger was the attorney responsible for overall strategy and policy and case management. Mr. Hawiger also sponsored expert testimony concerning cost recovery and rate and bill impacts, and conducted analyses related to the cost impacts of regulatory asset treatment. Ms. Stough joined TURN in September of 2020, and had worked previously in the energy sector as an attorney with Adams Broadwell Joseph and Cardozo, with Communities for a Better Environment, and with Braun Blaising Smith and Wynne. In this proceeding, Ms. Stough was the lead attorney on equity and social justice issues, as well as policy issues concerning alternative sources of funds. Ms. Stough sponsored expert policy testimony on rate affordability, environmental and social justice, and market transformation issues. Ms. Goodson was the lead attorney on the case in the early stages of the proceeding, and was the lead for drafting of the protest and responding to motions. Ms. Torres provided as-needed assistance during hearings due to scheduling constraints. <u>Expert Hours</u> All of the work in this proceeding was conducted by in-house expert Eric Borden and consulting expert Jalal Awan, with Mr. Awan performing the vast majority of the work. While working for TURN as a consulting expert on this case, Mr. Awan was a Ph.D. candidate in Public Policy Analysis at the Pardee RAND Graduate School, and had worked since 2017 as an Assistant Policy Researcher at the RAND Corporation. Mr. Awan holds a Master of Science in Green Technologies from the University of Southern	GHG marginal abatement costs were helpful; however, Cal Advocates did the same work.

	CPUC Discussion
California, and a Bachelor of Science in Electrical Engineering from the University of Engineering and Technology in Lahore, Pakistan. Mr. Awan worked in the utility sector as an electrical engineer at Engro Corp (formerly Exxon Mobil) in Daharki, Pakistan from 2010-2014 and 2016-2017. Mr. Awan joined the TURN staff in November of 2023. In this case, Mr. Awan performed all the analyses related to cost-effectiveness modeling, including the GHG marginal abatement costs. Mr. Awan also provided technical assistance with bill and rate impact modeling for TURN witness Hawiger. Eric Borden was TURN’s in-house energy analyst from 2015 to 2022. He provided technical assistance to Mr. Awan concerning certain modeling and ratemaking issues. <u>Meetings or Discussions Involving More Than One TURN Attorney or Expert</u> A relatively small percentage of hours and hourly entries reflect internal and external meetings involving two or more of TURN’s attorneys and expert witnesses. In some past compensation decisions, the Commission has deemed such entries as reflecting internal duplication that is not eligible for an award of intervenor compensation. TURN emphasizes that such meetings among TURN’s attorneys and expert witnesses are essential to the effective development and implementation of TURN’s strategy for the proceeding. None of the attendees are there in a duplicative role – each is an active participant, bringing his or her particular knowledge and expertise to bear on the discussions. As a result, TURN is able to identify issues and angles that would almost certainly never come to mind but for the “group-think” achievable in such settings. Such meetings were necessary to develop policies to address this first-of-its kind program to subsidize behind-the-meter building electrification. There were also meetings with other parties at which more than one attorney represented TURN on occasion. The Commission should understand that this is often essential in a case such as this one, with a wide range of issues that no single person is likely to master. TURN’s requested hours do not include any for a TURN attorney or expert witness where his or her presence at a meeting was not necessary in order to achieve the meeting’s purpose. TURN submits that such meetings can be part of an intervenor’s effective advocacy before the Commission, and that intervenor compensation can and should be awarded for the time of all participants in such meetings where, as here,	Noted; however, <i>See</i> Part III.D CPUC Comments, Disallowances and Adjustments [7].

	CPUC Discussion																								
each participant needed to be in the meeting to advance the intervenor's advocacy efforts. <u>Summary</u> TURN submits that our recorded attorney and expert hours in this proceeding are reasonable, both as described above and as demonstrated in the substantial contributions TURN made in this proceeding. Therefore, TURN seeks compensation for all of the hours recorded by our staff members and outside consultants included in this request.																									
c. Allocation of hours by issue: <u>Summary</u> TURN allocates all of our attorney and expert witness time by issue area or activity, as shown in the attached timesheets. In this proceeding, TURN used six activity codes and nine issue codes, as defined in the Table below. <table> <tr> <th>CODE</th><th>DEFINITION OF ISSUE OR ACTIVITY</th></tr> <tr> <td colspan="2"><u>ISSUE CODES</u></td></tr> <tr> <td>RateImpact</td><td>Rate and Bill Impact analyses, including NPV analysis of rate impacts over lifetime of program</td></tr> <tr> <td>NTG</td><td>Net to gross - Impact of free ridership on program benefits</td></tr> <tr> <td>Policy</td><td>Policy issues, including alternative funding sources and coordination with other programs</td></tr> <tr> <td>ESJ</td><td>Environmental and social justice - recommendations impacting ESJ communities</td></tr> <tr> <td>GHG</td><td>Greenhouse gas (GHG) marginal abatement costs</td></tr> <tr> <td>CostRec</td><td>Cost recovery issues aside from the regulatory asset issue</td></tr> <tr> <td>RegAsset</td><td>Treatment of behind-the-meter subsidies as regulatory asset</td></tr> <tr> <td>DR</td><td>Demand response policy issues</td></tr> <tr> <td>C/E</td><td>Work concerning program cost-effectiveness modeling not assignable to other specific issue</td></tr> <tr> <td colspan="2"><u>ACTIVITY CODES</u></td></tr> </table>	CODE	DEFINITION OF ISSUE OR ACTIVITY	<u>ISSUE CODES</u>		RateImpact	Rate and Bill Impact analyses, including NPV analysis of rate impacts over lifetime of program	NTG	Net to gross - Impact of free ridership on program benefits	Policy	Policy issues, including alternative funding sources and coordination with other programs	ESJ	Environmental and social justice - recommendations impacting ESJ communities	GHG	Greenhouse gas (GHG) marginal abatement costs	CostRec	Cost recovery issues aside from the regulatory asset issue	RegAsset	Treatment of behind-the-meter subsidies as regulatory asset	DR	Demand response policy issues	C/E	Work concerning program cost-effectiveness modeling not assignable to other specific issue	<u>ACTIVITY CODES</u>		Noted NRDC and Cal Advocates also analyzed rate impacts and Greenhouse gas marginal abatement costs. Environmental and social justice issues were covered by NRDC and Wild Tree Foundation. Cal Advocates made similar arguments related to low-income customers.
CODE	DEFINITION OF ISSUE OR ACTIVITY																								
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<u>ACTIVITY CODES</u>																									

		CPUC Discussion	
GP	General work - work necessary to litigate case that does not depend on the specific issues TURN ultimately addresses		
GH	General hearing-related work (evidentiary hearings and PHC) not assignable to specific issue		
#	Work on multiple issues that could not be easily segregated by issue		
CaseMng	Case management to ensure consistency and timeliness		
Coord	Coordination with other intervenors		
Disc	Discovery work not assignable to specific issue		
Both attorneys and experts coded their time using these codes, either contemporaneously or afterwards. The coding shows that the large majority of expert time was devoted to rate and bill impact analyses (32%), cost-effectiveness analysis (36%), and GHG marginal abatement cost analysis (10%). The main areas of work for attorneys included rate impact analyses (10%), policy issues (21%), hearing-related work (20%), and environmental and social justice issues (6%). TURN notes that in this case, both attorneys Hawiger and Stough sponsored portions of TURN’s written expert testimony. Mr. Hawiger conducted analyses related to the net present value (NPV) of program costs and bill impacts. The detailed time coding results in the following allocation of time by issue or activity.			
CODE	% of Attn Time	% of Expert Witness Time	% of Total Time
<u>ISSUE</u>			
<u>CODES</u>			
RateImpact	10.15%	31.79%	16.07%
NTG	1.20%	1.42%	1.26%
Policy	21.24%	0.36%	15.53%
ESJ	6.15%	0.89%	4.71%
GHG	0.20%	9.95%	2.86%
CostRec	1.74%	0.89%	1.50%
RegAsset	1.67%	0.89%	1.46%
DR	0.27%	0.00%	0.19%

				CPUC Discussion
C/E	4.07%	35.88%	12.77%	
<u>ACTIVITY</u>				
<u>CODES</u>				
GP	16.90%	6.57%	14.08%	
GH	20.31%	4.80%	16.07%	
#	11.69%	4.26%	9.66%	
CaseMng	1.47%	0.00%	1.07%	
Coord	2.94%	0.89%	2.38%	
Disc	0.00%	1.42%	0.39%	
	100.00%	100.00%	100.00%	
<u>General Time Coded as “GP”, “#” or “GH”</u>				
Where work cannot be easily allocated to a specific issue or does not address a particular issue that TURN eventually addresses, but is essential to participation in litigation, TURN has historically used the general work designation “GP.” For example, reading Commission or ALJ Rulings typically falls into the “GP” code category. Also, early review of testimonies to identify issues may be coded as GP. Review of portions of pleadings or testimonies that may not be directly allocated to a specific issue disputed by TURN would also be coded GP. Other tasks, such general hearing activities or case management work may be coded with non-issue-specific activity codes such as “GH” or “CaseMng.” When work addresses more than one issue and cannot be easily segregated, it is typically coded as “#.”				
Based on direction from the Commission, TURN committed in 2023 to coding all time using individual issue codes as much as possible, and reducing the time coded to non-issue-specific activity and issue codes. Almost all the work in this case was conducted in 2022. Moreover, it is impossible in any case to entirely eliminate all work that is not specific to an identified issue in dispute, or to assign all work to a single issue.				
For example, both attorneys and experts must review the testimonies and pleadings of other parties, and such review inherently encompasses multiple issues and is necessary for participation. Such review requires reading or at least skimming important testimonies even when not directly related to issues TURN has addressed. In this case TURN focused our participation on the three key issues of bill impacts, marginal abatement costs, and cost recovery. However, a large number				

	CPUC Discussion
of intervenors submitted rather lengthy testimonies and pleadings on multiple other issues, including the health impacts of natural gas combustion, the health benefits of appliance electrification, and policy issues related to building electrification and the proper role of the utilities in this process. Effective participation in this case required at least a review of those pleadings to identify potential areas of overlap that might require a response by TURN. TURN submits, however, that while such review added to the number of hours coded as GP, TURN's focus on if just three issue areas reduced the total number of hours spent on the proceeding, though it increased the percentage of hours recorded as GP (because the total hours denominator is smaller). As a result, the GP category comprised a higher percentage of total time, encompassing approximately 17% of attorney time and 7% of expert witness time. There was considerable overlap in the work addressing issues concerning cost-effectiveness, marginal abatement costs, and rate and bill impacts, resulting in hours coded as "#." For example, the issue of which climate zone was appropriate for modeling costs and benefits impacted cost effectiveness, GHG abatement costs, and rate impacts (due to its impact on forecast electricity usage increases). For this reason, approximately 12% of attorney time and 4% of expert witness time was coded as "#", for work that could not be allocated to a specific issue area. TURN believes that given the number of unusual issues in this first-of-its-kind application for a program providing subsidies for behind-the-meter appliance installation, TURN's overall expenditure of 515 hours of professional time was quite reasonable, and that the allocation of time to GP and # activities was a necessary response to reviewing the large number of testimonies and pleadings addressing the multiple issues in this case.	

B. Specific Claim:*

CLAIMED						CPUC AWARD		
ATTORNEY, EXPERT, AND ADVOCATE FEES								
Item	Year	Hours	Rate \$	Basis for Rate*	Total \$	Hours	Rate \$	Total \$
ATTORNEY								
Elise Torres	2022	4.75	\$465.00	D.24-01-014	\$2,208.75	4.75	\$465.00 [1]	\$2,208.75

CLAIMED						CPUC AWARD		
Hayley Goodson	2022	31.25	\$570.00	D.23-01-015	\$17,812.50	31.25	\$570.00 [2]	\$17,812.50
Camille Stough	2021	0.50 ³	\$370.00	N/A	\$185	0.50	\$370.00 [3]	\$185.00
Camille Stough	2022	185.50	\$380.00	D.23-10-017	\$70,490.00	185.50	\$380.00 [3]	\$70,490.00
Marcel Hawiger	2022	143.75	\$670.00	D.23-03-042	\$96,312.50	137.50 [7]	\$670.00 [4]	\$92,125.00
Marcel Hawiger	2023	9.00	\$735.00	D.23-10-017	\$6,615.00	9.00	\$735.00 [4]	\$6,615.00
EXPERT								
Eric Borden	2022	22.50	\$445.00	D.23-05-032	\$10,012.50	22.50	\$445.00 [5]	\$10,012.50
Jalal Awan, Consultant	2022	118.25	\$200.00	Res. ALJ-393 - New Rate (see Comment 1)	\$23,650.00	117.00 [7]	\$200.00 [6]	\$23,400.00
Subtotal: \$227,101.25 ⁴						Subtotal: \$222,848.75 [25% overall reduction] [8, 9]: \$167,136.56		
INTERVENOR COMPENSATION CLAIM PREPARATION **								
Item	Year	Hours	Rate \$	Basis for Rate*	Total \$	Hours	Rate \$	Total \$
Marcel Hawiger	2024	14.25	\$120.00	1/2 of charged rate	\$1,710.00	14.25	\$120.00 [4]	\$1,710.00
Hayley Goodson	2022	1.00	\$285.00	1/2 of authorized rate	\$285.00	1.00	\$285.00 [2]	\$285.00
Subtotal: \$1,995.00						Subtotal: \$1,995.00		
TOTAL REQUEST: \$229,096.25 ⁵						TOTAL AWARD: \$169,131.56		
*We remind all intervenors that Commission staff may audit the records and books of the intervenors to the extent necessary to verify the basis for the award (§ 1804(d)). Intervenors must make and retain adequate accounting and other documentation to support all claims for intervenor compensation. Intervenor’s records should identify specific issues for which it seeks compensation, the actual time spent by each employee or consultant, the applicable hourly rates, fees paid to consultants and any other costs for which compensation was claimed. The records pertaining to an award of compensation shall be retained for at least three years from the date of the final decision making the award. **Travel and Reasonable Claim preparation time are typically compensated at ½ of preparer’s normal hourly rate								

³ Timesheets submitted by TURN illustrate 0.50 hours for Stough in 2021.

⁴ The correct total with Stough's 2021 hours is \$227,286.25.

⁵ Total request should be \$229,281.25.

CLAIMED			CPUC AWARD
ATTORNEY INFORMATION			
Attorney	Date Admitted to CA BAR ⁶	Member Number	Actions Affecting Eligibility (Yes/No?) If “Yes”, attach explanation
Camille Stough	June 2016	309555	No
Elise Torres	December 2011	280443	No
Hayley Goodson	December 2003	228535	No
Marcel Hawiger	January 1998	194244	No

C. Attachments Documenting Specific Claim and Comments on Part III⁷:

Attachment or Comment #	Description/Comment
Attachment 1	Certificate of Service
Attachment 2	Hourly Time Sheets for Attorneys
Attachment 3	Hourly Time Sheets for Experts
Attachment 4	Resume for Jalal Awan
Comment 1	Hourly Rate for Jalal Awan for 2022 Pursuant to the requirements of ALJ-393, TURN hereby submits its first request for a 2022 hourly rate for outside expert consultant Jalal Awan. Intervenor Representative: Jalal Awan Labor Role: Expert – Public Policy Analyst Level: III 2021 Hourly Rate Range: \$167.08 - \$310.50 2022 Hourly Rate Range: \$172.59 - \$320.75 Requested Hourly Rate: \$200 Current Resume: See Attachment 4. Justification for the Requested Hourly Rate: Jalal Awan’s education and work experience more than qualify him for compensation as a Public Policy Analyst Level III Expert.

⁶ This information may be obtained through the State Bar of California’s website at <http://members.calbar.ca.gov/fal/MemberSearch/QuickSearch>.

⁷ Attachments not included in the final decision.

Attachment or Comment #	Description/Comment
	Mr. Awan holds a Ph.D in Public Policy Analysis from the Pardee RAND Graduate School, and also a Master of Science in Green Technologies from the University of Southern California, where he was a Fulbright Scholar. Mr. Awan has a Bachelor of Science in Electrical Engineering from the University of Engineering and Technology in Lahore, Pakistan. In 2022, Mr. Awan was still a Ph.D. candidate, and he obtained his Ph.D. in September 2023. From 2017 to 2023, Mr. Awan worked as an Assistant Policy Researcher at the Pardee RAND Graduate School / RAND Corporation, where he developed solutions to public policy challenges through policy research and analysis. His focus has been on climate change and emerging technologies, as well as public health emergency response performance evaluation. Before turning to policy analysis, Mr. Awan worked in the utility sector as an electrical engineer at Engro Corp (formerly Exxon Mobil) in Daharki, Pakistan from 2010-2014 and 2016-2017. Among his various engineering responsibilities, Mr. Awan: developed hands-on experience in electric grid transmission and distribution protection, grid design, smart grid interconnection and load flow analysis; implemented load-shedding to maintain plant reliability during power swings; supervised routine preventative and corrective maintenance of utility-scale electrical equipment; served as lead engineer for design, installation, and grid integration of 1MW solar PV panels with 1000Ah battery bank; conducted the first lifecycle GHG emissions survey for the site annual report; and benchmarked plant performance against competitors. TURN requests an hourly rate of \$200 for Mr. Awan in 2022, which is the actual rate Mr. Awan billed TURN for his consulting services. (Mr. Awan joined the TURN staff as an Energy and Climate Policy Analyst in November of 2023.) The requested rate is below the median rate for a Level I Public Policy Analyst of \$241.76 (equal to the 2021 rate of \$234.04 adjusted by the 3.3% COLA) and below the bottom of the range for a Level III Public Policy Analyst of \$239.17 (equal to the 2021 rate of \$231.53 adjusted by the 3.3% COLA). A Level I Public Policy Analyst must have a Bachelor's Degree and 0-1 years of experience according to the Market Rate Study adopted by Resolution ALJ-393, while a Level III Public Policy Analyst must have 5-10 years of experience. TURN submits that the requested rate is reasonable, given that Mr. Awan meets the requirements for a Level III Public Policy Analyst. In 2022, Mr. Awan's education and relevant experience included 5 years as an Assistant Policy Researcher at the RAND Corporation and 5 years of as an

Attachment or Comment #	Description/Comment
	electrical engineer in the power sector. TURN accordingly requests that the Commission adopt a rate of \$200 for Jalal Awan for 2022.
Comment 2	Hourly Rate for Marcel Hawiger for 2024 As of May 1, 2023, Mr. Hawiger was no longer a staff attorney with TURN. Mr. Hawiger worked on this proceeding in 2024 as a consultant for TURN. The Commission had authorized an hourly rate of \$735 for Mr. Hawiger for 2023 in D.23-10-017; however, as a consultant Mr. Hawiger charged TURN a discounted public interest rate of \$240 per hour for his services. Pursuant to the intervenor compensation policy established in D.07-01-009, TURN requests compensation at the rate actually billed by Mr. Hawiger for work performed after May 1, 2023.

D. CPUC Comments, Disallowances, and Adjustments

Item	Reason
[1] Elise Torres (Torres) 2022 Hourly Rate	D.24-01-014 approved a 2022 hourly rate of \$465 for Torres.
[2] Hayley Goodson (Goodson) 2022 Hourly Rate	D.23-01-015 approved a 2022 hourly rate of \$570 for Goodson. 50% of this rate is applied to intervenor compensation preparation for Goodson.
[3] Camille Stough (Stough) 2021 and 2022 Hourly Rate	D.23-02-037 approved a 2021 hourly rate of \$370 for Stough. D.23-09-018 approved a 2022 hourly rate of \$380 for Stough.
[4] Marcel Hawiger (Hawiger) 2022, 2023, and 2024 Hourly Rates	D.23-03-042 approved a 2022 hourly rate of \$670 for Hawiger. D.23-10-017 approved a 2023 hourly rate of \$735 for Hawiger. As of 2024, Hawiger is no longer an attorney for TURN. Hawiger worked on this proceeding in 2024 as a consultant for TURN. As a consultant Mr. Hawiger charged TURN a discounted public interest rate of \$240 per hour for his services. We therefore approve the rate of \$240 for Mr. Hawiger here. As Intervenor Compensation Claim Preparation hours are compensated at ½ preparer’s normal hourly rate, we apply the rate of \$120 for Hawiger.

Item	Reason
[5] Eric Borden (Borden) 2022 Hourly Rate	D.23-05-032 approved a 2022 hourly rate of \$445 for Borden.
[6] Jalal Awan (Awan) 2022 Hourly Rate	TURN has confirmed that Awan is a consultant. Pursuant to Commission policy, the rate requested by an intervenor must not exceed the rate billed to that intervenor by any outside consultant it hires, even if the consultant's billed rate is below the floor for a given experience level.⁸ Per the IComp Program Guide at 24, the Commission may audit the records and books of the intervenors to the extent necessary to verify the basis for the award (§ 1804(d)). TURN confirms that it paid Awan \$200 per hour for work performed in 2022 in this proceeding. Given Mr. Awan's educational background and relevant experience, we find the 2022 hourly rate of \$200 for Awan reasonable and we adopt it here. The award determined herein for the consultant's contribution in this proceeding shall be paid in full to the consultant, and no portion of this part of the award shall be kept by the intervenor. Additionally, the rates approved here are specific to work in this proceeding and the contract terms between the consultant and intervenor, as they are established in accordance with the Commission's policy on consultant compensation.
[7] Issues not Addressed in the Decision	TURN devoted a significant amount of time and effort to 1) legal research and analysis concerning regulatory asset rate treatment for behind-the-meter home electrical upgrades; and 2) factual analyses concerning the cost effectiveness of the program. TURN states that the issue of regulatory asset treatment became moot since the Commission dismissed the application and Hawiger conducted research and sponsored testimony on this topic, coded as "RegAsset." We understand the importance of this issue; however, since this topic was not discussed in the final decision, this issue has no impact on the Commission's final decision-making process. We encourage TURN to include its hours of work on Regulatory Asset in the intervenor compensation claim pertaining to a decision on this issue, pursuant to

⁸ D.07-01-009, D.08-04-010, and ALJ Resolution ALJ 235.

Item	Reason												
	Sections 1802(j) and 1804(c) and Rule 17.3.9 As such we disallow all hours dedicated to “RegAssest.” Hawiger: 6.25 hours claimed regarding Regulatory Asset issue, 100% of these hours disallowed equals 0.00 hours. Awan: 1.25 hours claimed regarding Regulatory Asset issue, 100% of these hours disallowed equals 0.00 hours.												
[8] Internal Duplication and Excessive Hours	TURN dedicates overall 515 hours of professional time with four attorneys and a consultant, with mainly Stough and Hawiger on the case. The hours illustrate duplicative work by TURN’s internal staff. The Commission compensates for the efficient effort that contributed to the proceeding’s outcomes. In the past, the Commission has disallowed inefficient activities and applied reductions to hours that reflected excessive internal duplicative efforts, such as numerous internal communications, review of each other’s documents, working on the same materials, engaging in the same tasks, and participating in the same events. Additionally, we do not find the allocation of hours reasonable in comparison to other parties in the proceeding, if multiple parties shared similar arguments. <u>Combined Tasks:</u> TURN inappropriately combined multiple tasks in the same time entry. Pursuant to Rule 17.4, each time record shall identify the specific task performed. <u>Stough:</u> <table><tr><th>Person</th><th>Activity</th><th>Date</th><th>Hours claimed</th></tr><tr><td>Camille Stough</td><td>Read email from SCE re draft of joint PHC statement and review notes from meet and confer</td><td>3/9/2022</td><td>0.25</td></tr></table> <u>Torres:</u> <table><tr><th>Person</th><th>Activity</th><th>Date</th><th>Hours</th></tr></table>	Person	Activity	Date	Hours claimed	Camille Stough	Read email from SCE re draft of joint PHC statement and review notes from meet and confer	3/9/2022	0.25	Person	Activity	Date	Hours
Person	Activity	Date	Hours claimed										
Camille Stough	Read email from SCE re draft of joint PHC statement and review notes from meet and confer	3/9/2022	0.25										
Person	Activity	Date	Hours										

⁹ See D.16-05-048 at 3-6, 15-16.

Item	Reason			
				claimed
	Elise Torres	review TURN testimony to prepare for representing TURN witnesses at evidentiary hearings; correspond with MH & CS RE hearings and panel witness issues	10/18/2022	2.00
	<u>Hawiger:</u>			
	Person	Timesheet entry	Date	Hours claimed
	Marcel Hawiger	Read protests (TURN, EDF, SC/NRDC); Read ALJ Ruling re. PHC	2/28/2022	0.75
		Internal emails re case management and transition; skim scoping memo	04/29/2022	0.25
		Review and edit Eric's DR 01 re program design and cost-effectiveness issues; read relevant portions of SCE testimony and WP	05/02/2022	1.25
		Review various EE Measure and SCE-02 workpapers re measure benefits; write email memo to Jalal; emails to SCE re SME Mtg	05/17/2022	1.25
		Review and analyze SCE's confid rate and bill impact model; create sample spreadsheet re. RRQ and sales impacts	05/19/2022	1.25
		Read SCE responses to DR TURN 002; write email re. marg gen costs	05/27/2022	1.50

Item	Reason			
		Review bill impact model spreadsheets to determine “incremental revenue” issue; write memo to Jalal	06/20/2022	0.50
		Review and revise Jalal’s edits and testimony additions/analyses; write internal memo re substantive questions	07/01/2022	1.25
		Makes notes re. cross exam questions; discovery questions; write internal memo re rebuttal testimony issues	07/19/2022	1.75
		Review joint stipulated exhibit list; write emails objecting to certain exhibits; upload TURN cross exhibits to supporting docs	09/22/2022	0.75
		Review joint stipulated exhibit list; write emails objecting to certain exhibits; upload TURN cross exhibits to supporting docs	10/14/2022	0.75
		Read email from Michelle Thomas of SCE explaining DR issue; read CPUC decision re. SHPWH program; write email to SCE	10/16/2022	0.75
		Edit opening brief on all issues; write section re balancing accounts; complete citations; read transcripts	12/13/2022	1.50
<u>Internal Duplication:</u> All hours below are dedicated to emails and team calls among the attorneys and the experts in this proceeding. These hours claimed are deemed duplicative given the scope of the proceeding and TURN’s substantial contribution to the final decision. <u>Camille Stough:</u>				

Item	Reason
	• 05/09/2022 – “Call with team re issues and data needs in preparation for testimony and analysis” (1.50) • 05/11/2022 – “Discuss with HG re cost-effectiveness analysis and testimony needs” (0.50) • 05/13/2022 – “Discuss with MH re testimony needs” (0.50) • 05/31/2022 – “Strategy call with team re analyses needed for testimony” (1.00) • 06/01/2022 – “Strategy meeting with team re analysis and testimony needs” (1.50) • 06/03/2022 – “Confer with MF and MH re state budget allocation for building decarb” (0.25) • 06/14/2022 – “Strategy meeting with team re analysis and testimony needs” (0.75) • 07/18/2022 – “Confer with MH re testimony needs” (0.25) • 07/18/2022 – “Emails with team re testimony” (0.25) • 07/21/2022 – “Emails with MH re draft testimony re policy issues” (0.50) • 07/22/2022 – “Emails with MH re draft testimony re policy issues” (0.25) • 08/05/2022 – “Discuss with MH re SCE BE supplemental testimony” (0.25) • 10/17/2022 – “Prepare and strategize with MH for evidentiary hearings” (1.50) • 10/19/2022 – “Prepare and strategize with MH and JA for evidentiary hearings” (1.50) • 11/14/2022 – “Discuss with MH re opening brief needs” (0.25) <u>Elise Torres:</u> • 10/20/2022 – “Call with MH to prepare for defense of TURN witnesses at hearing” (0.50) • 01/11/2022 – “Call with CS re protest, coordinating with CalAdv” (0.25) • 01/19/2022 – “Confer with CS re protest basis and schedule” (0.75) <u>Hayley Goodson:</u> • 03/29/2022 – “mtg with Eric on SCE WPs, initial thoughts for analysis and discovery” (0.25) • 04/12/2022 – “mtg with Eric and Camille to discuss issue coverage, discovery, coordination with Cal Advocates” (1.25) • 04/13/2022 – “confer with Jalal, Eric re background research, coordinating with CalPA” (0.25)

Item	Reason
	• 04/13/2022 – “draft email to Eric, Camille re call with CalPA, next steps” (0.50) • 04/29/2022 – “confer with Marcel re NDA and status of case for hand-off” (0.25) • 10/21/2022 – “mtg with CS, MH re ESJ issues for briefing” (0.25) <u>Marcel Hawiger:</u> • 04/29/2022 – “Internal emails re case management and transition; skin scoping memo” (0.25) • 05/09/2022 – “Team mtg re c/e, issues, TURN positions for testimony” (1.50) • 05/18/2022 – “Mtg w/ Camille and Jalal to discuss testimony outline, assignments; c/e analysis; rate impact analysis” (1.50) • 05/18/2022 – “Meet w/ Eric to discuss cost recovery WP and NPV analysis” (0.25) • 05/24/2022 – “T/c mtg w/ SCE to discuss SCE WP related to program benefits, fuel substitution, etc.” (1.00) • 05/27/2022 – “T/C mtg w/ Jalal to discuss rate impact model spreadsheet and TURN analyses; other testimony issues” (1.25) • 05/31/2022 – “T/c mtg w/ Eric, Jalal and Camille re. rate impacts analysis” (1.25) • 06/01/2022 – “T/c mtg w/ Jalal, Camille and Eric re. rate impact analysis” (1.25) • 06/03/2022 – “T/c mtg w/ PAO re. issues for testimony; c/e; GHG benefits; Rate Impact analysis; write emails” (1.25) • 06/08/2022 – “T/c mtg w/ Jalal to discuss NPV benefit-cost analysis and testimony” (1.25) • 06/13/2022 – “T/c mtg w/ Eric to discuss analysis of total bill impacts to non-participants due to combined gas and electric load impacts” (0.25) • 06/14/2022 – “T/c mtg w/ Camille and Jalal re testimony issues; review rate impact analyses and SCE’s CONFID b/c analysis” (1.25) • 06/23/2022 – “T/c mtg w/ Jalal re. rate impact analyses and SCE’s DRs and model re. marginal gen costs” (1.75) • 07/01/2022 – “T/c mtg w/ Jalal re Bill Impact Model sheets and proper NPV analysis of B/C” (1.50) • 07/07/2022 – “T/C meeting w/ PAO re testimony issues re cost recovery; c/e; and rate impacts” (0.75) • 07/07/2022 – “T/c mtg w/ jalal and Eric Borden to finalize analyses re NPV program b/c impacts” (1.50)

Item	Reason
	• 07/12/2022 – “Read emails from Jalal and Eric re time period to use for NPV analysis; review spreadsheet” (0.50) • 07/13/2022 – “T/C mtg w/ Jalal and Eric to finalize rate impact analyses” (1.00) • 07/21/2022 – “Review Jalal’s edits and email re remaining substantive issues; write response email” (0.50) • 08/05/2022 – “T/C mtg w/ Camille to discuss supp testimony issues and rebuttal testimony issues” (0.50) • 08/12/2022 – “T/c mtg w/ Jalal re potential issues for rebuttal testimony issues” (0.50) • 09/09/2022 – “t/c mtg w/ Jalal re response to SCE DR 002; next steps in case” (0.25) • 09/28/2022 – “T/C mtg w/ Jalal re. marginal gen costs in rate impact analysis” (0.50) • 09/29/2022 – “T/c mtg w/ SoCalGas re. cross examination issues” (0.25) • 10/04/2022 – “Write internal email memo re hearings and cross examination” (0.25) • 10/10/2022 – “T/c mtg re. JCMS” (0.25) • 10/11/2022 – “T/c mtg w/ Camille to discuss issues for hearings and cross defense” (0.75) • 10/12/2022 – “T/c mtg w/ Jalal re. hearings, issues for cross” (0.50) • 10/17/2022 – “t/c mtg w/ Camille re potential cross of TURN witnesses”(1.50) • 10/19/2022 – “T/C mtg w/ Camille and Jalal to prep for cross tomorrow” (1.50) • 11/14/2022 – “TC mtg w/ Camille re schedule and SBUA request for extension” (0.25) <u>Eric Borden:</u> • 01/14/2022 – “T/c with Cal PA re SCE BE Application” (1.00) • 03/29/2022 – “T/c participation in workshop on BE Workpapers” (1.00) • 03/29/2022 – “T/c with Hayley G re SCE BE Application” (0.50) • 04/12/2022 – “T/c with Camille, Hayley (TURN) re SCE BE Application” (1.25) • 05/05/2022 – “T/c with Jalal, Marcel re SCE BE strategy” (0.75) • 05/24/2022 – “T/c with SCE/TURN re workpapers” (1.00) • 05/31/2022 – “T/c internal meeting re SCE BE analyses” (1.00) • 06/01/2022 – “T/c with Jalal, Marcel re rates analyses” (1.00)

Item	Reason
	<u>Attorneys work on the same issues:</u> There are four attorneys claiming compensation for this claim; however, Hawiger and Stough have a combined 329.25 hours out of a total of 515 hours (not including IComp prep). Upon review of the timesheets, both Hawiger and Stough are spending time on the same tasks such as revising testimonies (07/14/22-07/25/22), prepping and attending evidentiary hearings (10/11/22-10/26/22), and drafting opening briefs (12/01/22-12/15/22). The hours are duplicative as they represent the same activities and work performed by two experienced attorneys. The total hours claimed by both attorneys: • Revising testimony: 39.25 for Stough, 18.25 for Hawiger • Evidentiary Hearing: 46.50 for Stough, 20.00 for Hawiger • Drafting opening brief: 24.00 for Stough, 9.00 for Hawiger We make the following reductions as discussed in Part III.D CPUC Comments, Disallowances and Adjustments [9] below.
[9] Failure to make a substantial contribution	TURN's claim totals nearly 530 hours, including intervenor compensation claim preparation time, which is approximately 45 percent greater (or more) than the total hours, including intervenor compensation claim preparation time, of any other intervenor in this proceeding. TURN's views were not entirely unique and did not contribute to or enrich the Commission's deliberations. We find many of TURN's claimed substantial contributions are references to similar positions raised by multiple parties that were equally substantial. In D.03-03-031, the Commission interpreted the duplication language contained in the first dependent clause to require "the compensation opponent to establish three elements – duplication, similar interests, and adequate representation." (D.03-03-031, p. 18.) "[I]t is within the Commission's discretion to decide whether those interests are otherwise adequately represented, in determining whether an intervenor has made a substantial contribution." (D.04-07-039, p. 8; see also Pub. Util. Code, §§ 1801.3(f), 1802(j), 1802.5.) When there is parallel participation between parties, "[p]articipation by a customer that materially supplements, complements, or contributes to the presentation of another party, including the commission staff, may be fully eligible for compensation if the participation makes a substantial contribution." (Pub. Util. Code, § 1802.5; see also D.09-08-021, p. 13.) TURN's filed comments were largely in response to or in agreement with another party's position or were statements that did not always

Item	Reason
	offer a unique perspective. We note that reference to an intervenor's filed comments assist in the verification of substantial contribution; however, they do not in and of themselves result in a substantial contribution, particularly when they primarily support another party's comments. The Commission compensates efficient effort that contributes to the proceeding's outcomes; however, the Commission also disallows inefficient participation that is not contributory to the underlying issues. In this decision, the same issue areas were focused on by other intervenors that had the same concerns. The majority of time dedicated by TURN representatives was focused on bill impact analyses (32%), cost-effectiveness analysis (36%), and GHG marginal abatement cost analysis (10%). The main areas of work for attorneys included rate impact analyses (10%), policy issues (21%), hearing-related work (20%), and environmental and social justice issues (6%). These issue areas were also argued by other intervenors as shown below: • Bill Impacts and Environmental Issues – this topic was also discussed by NRDC and Wild Tree Foundation. • GHG marginal abatement costs – Cal Advocates provided similar stance and did the same work. • Rate impacts – NRDC and Cal Advocates also analyzed rate impacts. • Policy issues – Cal Advocates made a substantial contribution to alternative funding sources and coordination with other program similar to TURN. • Environmental and Social Justice Issues – Topic was already covered by NRDC and Wild Tree Foundation; Cal Advocates mentioned low-income customers. Additionally, a large portion of the hours claimed by TURN's internal staff relates to reviewing documents, emailing and/or calling, and attending meetings as described in Part III.D CPUC Comments, Disallowances and Adjustments [8] above. These timesheets reflect internal duplication and excessive hours claimed. See D.07-12-007 (stating "[w]e do not find it reasonable to compensate [intervenor] for excessive hours either in meetings with each other or reviewing each other's work. We find this process was unreasonably duplicative and believe it resulted in excessive hours given the level of [intervenor's] contributions to this proceeding."). As the Commission previously stated, we "compensate[for] efficient effort that contributed to the proceeding's outcomes . . . [and] disallow[] inefficient activities and appl[y] reductions to [intervenor's] hours that reflected excessive

Item	Reason
	internal duplicative efforts, such as numerous internal communications, review of each other's documents, working on the same materials, engaging in the same tasks and participating in the same events." D.12-03-024 at 24. For the reasons described above, and given the scope of the decision in relation to other intervenors, and the we find 75% of the total attorney, advocate, and expert hours reasonable, as it acknowledges the value of TURN's contributions while aligning to similar arguments claimed by other intervenors in D.24-01-004. Public Utilities Code § 1802(j) states a substantial contribution "has substantially assisted the commission in the making of its order or decision because the order or decision has adopted in whole or in part one or more factual contentions, legal contentions, or specific policy or procedural recommendations presented by the customer." This decision finds that the claimed contributions were duplicative, excessive, and not substantive in every case.

PART IV: OPPOSITIONS AND COMMENTS

Within 30 days after service of this Claim, Commission Staff or any other party may file a response to the Claim (*see* § 1804(c))

A. Opposition: Did any party oppose the Claim?	No
B. Comment Period: Was the 30-day comment period waived (<i>see</i> Rule 14.6(c)(6))?	Yes

FINDINGS OF FACT

1. The Utility Reform Network has made a substantial contribution to D.24-01-004.
2. The requested hourly rates for The Utility Reform Network's representatives, as adjusted herein, are comparable to market rates paid to experts and advocates having comparable training and experience and offering similar services, and/or reflect the actual rates billed to, and paid by the intervenor, for consultant services rendered.
3. The claimed costs and expenses, as adjusted herein, are reasonable and commensurate with the work performed.
4. The total of reasonable compensation is \$169,131.56.

CONCLUSION OF LAW

1. The Claim, with any adjustment set forth above, satisfies all requirements of Pub. Util. Code §§ 1801-1812.

ORDER

1. The Utility Reform Network is awarded \$169,131.56.
2. Within 30 days of the effective date of this decision, Southern California Edison Company shall pay The Utility Reform Network the total award. Payment of the award shall include compound interest at the rate earned on prime, three-month non-financial commercial paper as reported in Federal Reserve Statistical Release H.15, beginning June 2, 2024, the 75th day after the filing of The Utility Reform Network's request, and continuing until full payment is made.
3. The comment period for today's decision is waived.

This decision is effective today.

Dated May 15, 2025, at Kings Beach, California.

ALICE REYNOLDS

President

JOHN REYNOLDS

KAREN DOUGLAS

Commissioners

Commissioner Darcie L. Houck,
being absent, did not participate in
the vote of this item.

Commissioner Matthew Baker
recused himself and did not
participate in the vote of this item.

APPENDIX

Compensation Decision Summary Information

Compensation Decision:	D2505027	Modifies Decision?	No
Contribution Decision(s):	D2401004		
Proceeding(s):	A2112009		
Author:	ALJ Zhang		
Payer(s):	Southern California Edison Company		

Intervenor Information

Intervenor	Date Claim Filed	Amount Requested	Amount Awarded	Multiplier?	Reason Change/ Disallowance
The Utility Reform Network	March 19, 2024	\$229,096.25 ⁵	\$169,131.56	N/A	See Part III.D. CPUC Comments, Disallowances, and Adjustments

Hourly Fee Information

First Name	Last Name	Attorney, Expert, or Advocate	Hourly Fee Requested	Year Hourly Fee Requested	Hourly Fee Adopted
Camille	Stough	Attorney	N/A	2021	\$370
Camille	Stough	Attorney	380	2022	\$380
Hayley	Goodson	Attorney	570	2022	\$570
Elise	Torres	Attorney	465	2022	\$465
Marcel	Hawiger	Attorney	670	2022	\$670
Marcel	Hawiger	Attorney	735	2023	\$735
Marcel	Hawiger	Consulting Attorney	240	2024	\$240
Eric	Borden	Expert	445	2022	\$445
Jalal	Awan	Expert Consultant	200	2022	\$200

(END OF APPENDIX)